# Know Your Rights & Responsibilities as an International Student in the U.S.

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International Student Engagement

# Know Your Rights & Responsibilities as an International Student in the U.S.

Concerned or curious about your rights in the U.S.A., including those based on your visa status? Confused about travel and documentation practices?

Read on to learn more about your **immigration rights** and **guidelines to adapt** as an international student.

DAVIDSON COLLEGE
International Student Engagement

*Information for F-1 visa holders regarding responsibilities and rights while in the U.S. This article is intended for informational purposes only and does not constitute legal advice.*

***This article is intended for F-1 visa-holding international students for informational purposes only and does not constitute legal advice.***

Adapted from resources found at nafsa.org, oiss.yale.edu, aclu.org, garfinkelimmigration.com

The International Student Resource Center also has a News page to keep up-to-date on developments.

**KNOW YOUR RESPONSIBILITIES IN THE U.S.**
updated 12/5/2025

F-1 visa holders are responsible for being familiar with and complying with the requirements of the F-1 student visa, and maintaining status at all times.

Additionally, U.S. government regulations state that all nonimmigrants (including F and J visa holders) and permanent residents (green card holders) should always:

- Carry a printed copy of their most recent I-94 record or, if a Permanent Resident, their green card. The I-94 record changes each time you enter the U.S. so download a copy each time you return to the U.S. after a temporary absence. International students must **carry a printed copy of the I-94 at all times** and advises F-1 students to also carry a copy of their I-20, passport and visa. Ensure the originals are easily accessible and in a safe place.
  - When traveling within the U.S., carry the originals of your documents in a safe place and protect them.
  - When traveling abroad, consult ISE's Travel page. If you would like to verify the status of your visa before traveling, visit the Consular Electronic Application Center's Visa Status Check site.
- Report address changes within 10 days. Note that any changes to on-campus residences are automatically reported to ISE and ISE will update these in F-1 visa holder's SEVIS records as received, but off-campus address changes must be reported by emailing intlstudents@davidson.edu within 10 days. Students on other visa types or with permanent residency should consult https://www.uscis.gov/addresschange for information about reporting address changes.

Visit this site for more information.

Students should also be aware that the U.S. government can- and has announced that it will- scrutinize social media footprints and criminal records during visa applications, border screenings, immigration benefit requests (e.g. OPT applications, applications to change to another visa status), or encounters with enforcement officers. Please see *Considering Protesting or Speaking Out? Risks as a Non-Citizen* below for additional information. If you are arrested or have an encounter with law enforcement, we recommend you seek the advice of a qualified immigration attorney in addition to a criminal attorney.

**KNOW YOUR RIGHTS IN THE U.S.**

Non-immigrants (including F, J, or H visa holders) have certain constitutional rights in the U.S. when confronted by local or federal authorities*.

*Resources for Consideration*

American Immigration Lawyer Association

- Know Your Rights if ICE visits

American Civil Liberties Union

The ACLU (American Civil Liberties Union) has a well-developed site discussing the rights of all who are present in the U.S. Again this information is not intended as legal advice, but is for informational purposes only.

- Main site - Know Your Rights
- Know Your Rights - Stopped by the Police
- Know Your Rights - Information Booklet
- Know Your Rights - Airport Enforcement

Immigrant Legal Resource Center (ILRC)

All people in the U.S., regardless of immigration status, have certain rights and protections under the U.S. Constitution. The ILRC's Red Cards help people assert their rights and defend themselves in many situations, such as when ICE agents go to a home. You can print a card from the website below and keep it in your wallet.

Red Cards - asserting your rights (in many different languages)

National Immigration Law Center

- Know Your Rights

Know Your Rights Resources from Garfinkel Immigration

*Questions about Your Immigration or Citizenship Status*

In the U.S. you have the right to remain silent and have the choice whether or not to discuss your immigration or citizenship status with police, immigration agents, or other officials*. It may be

worthwhile to read in advance about your rights when responding to immigration questions from police or other government officials.

**Exception Regarding Discussing Immigration Status: Airports and Ports of Entry*

An exception to your right to discuss or not discuss your immigration status is at an airport or other U.S Port of Entry. When traveling, you WILL need to show your immigration documents to airport officials, security, and Customs and Border Protection (CBP) officers. It is important to understand that possessing a valid visa is not a guarantee of admission. The decision to admit non-citizens into the U.S. is made by the CBP officer reviewing your documents. CBP also has the authority to search electronic devices. While most students are admitted easily and without stress, occasionally, students are referred to another officer to verify your immigration status or for additional questioning. This is called “secondary inspection”. Although secondary inspection can be intimidating and may take some time, there is usually little cause for alarm.

When interacting with CBP or law enforcement at a port of entry, we recommend being polite, cooperative, truthful, and giving the simplest answers possible if questioned about anything. You do not have the right to an attorney when being questioned at the airport or other point of entry for admission into the U.S. You *do* have the right to an attorney if you are being questioned on anything else unrelated to immigration - such as suspected criminal activities.

If the CBP officer has questions that can be answered by ISE staff, you may ask them if they would call ISE for confirmation. They can usually access our contact information through SEVIS, but you can keep our numbers in your phones just in case. After hours, they should call the Davidson College Campus Police non-emergency number (704-892-7773) who can reach out to ISE staff.

*Considering Protesting or Speaking Out? Risks as a Non-Citizen*

While the U.S. Constitution protects freedom of speech and peaceful protest, and protests may be approved and sanctioned by an entity such as a city, college, etc., any illegal activity that may occur during a protest such as trespassing, violence, vandalism, etc. are not protected and can result in arrest. Harassment and hate speech are also not protected forms of speech and what may be considered harassment or hate speech may not be clearly defined. It is important for international students, as non-citizens, to be aware that if you are arrested, charged, or convicted as a result of participating in a protest, this could impact your current and future immigration status, any future immigration or visa applications, and your interactions with immigration and consular authorities. Think very carefully before you engage in forms of protest. If you do decide to engage in a protest, if at any point law enforcement officials give any instruction to end activities or leave the area, you should comply with those instructions to

avoid an arrest or charge. There is a risk of an arrest or charge if you become disrespectful, ignore instructions from law enforcement personnel, and/or violence is imminent.

Note: on January 29, 2025, President Trump signed Executive Order 14188 *Additional Measures To Combat Anti-Semitism.* It remains to be seen how this may affect the monitoring of and implications of protests and speech on college campuses in the future, but students may wish to review the Executive Order and its corresponding Fact Sheet, particularly with regard to language regarding potential visa revocation for those engaging in "pro-jihadist protests" and for "Hamas sympathizers". Students should also be aware that recent developments indicate that other activity (e.g. social media posts, published news pieces, etc.) may be considered when applying for a visa, a visa benefit, or admission to the U.S.. See USCIS's news release from April 9, 2025 DHS to Begin Screening Alien's Social Media Activity for Antisemitism for more information.

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## Discussion

K Kerem Atas

Write a message

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